

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

Samsung Electronics America, Inc.

v.

COSCO Shipping Lines Co. Ltd.

v.

**Samsung Electronics Co., Ltd., Samsung SDS Asia Pacific Pte Ltd., and Samsung
Electronics Logitech Co., Ltd.**

RESPONDENT COSCO'S MOTION TO COMPEL DISCOVERY FROM
COMPLAINANT SAMSUNG ELECTRONICS AMERICA, INC.

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Complainant Samsung Electronics America, Inc. (“SEA”) seeks reparations “totaling at least \$20 million” for what it contends were unjust and unreasonable detention, demurrage, and related charges imposed by Respondent COSCO Shipping Lines Co., Ltd. (“COSCO”) and third parties in alleged violation of the Shipping Act. Verified Amended Complaint (“AC”) (Doc. 26) ¶108. As set forth below, SEA has failed to meet its discovery obligations—refusing to answer or submitting incomplete or evasive answers to interrogatories that go to the heart of its claims and denying COSCO crucial documents and information. Accordingly, COSCO respectfully moves under 46 CFR § 502.150 for an order compelling SEA to provide complete answers to Interrogatory Nos. 6, 9,12-14, 17, 19-20, and 25 and RFP No. 11 of Respondent’s First Set of Interrogatories and First Set of Requests for Production, so that COSCO may obtain information and documents it needs to defend against SEA’s claims and prepare for trial.

LEGAL STANDARD

46 CFR § 502.150 permits a party to move to compel answers to interrogatories and to produce documents in response to the propounding party’s discovery requests. A “failure to make a disclosure, answer, or respond includes an evasive or incomplete disclosure, answer, or response.” 46 CFR § 502.150(a)(1). On a motion to compel, “[W]hile the requesting party bears the initial burden of demonstrating relevance, once that showing is made, the party resisting discovery bears the burden of demonstrating that the requests are irrelevant, or are overly broad, burdensome, or oppressive.” *Ocean Network Express Pte. Ltd. and Ocean Express (North America) Inc. - Possible Violations of 46 U.S.C. § 41102(c)*, Dkt. 21-17, 2022 WL 1485900, at *1 (A.L.J. May 4, 2022).

ARGUMENT

I. SEA Should be Compelled to Answer Interrogatory Nos. 12, 13, 14, 17, 19, and 20.

SEA bears the burden of proving, for each delay charge that it contests, that COSCO was

at fault and is responsible for the delay. “In the absence of a container-by-container analysis specifying the cause of each charge in dispute, a complainant generally fails to meet its burden to establish that the damages sought proximately resulted from the unreasonable practice alleged.” *Samsung Electronics America, Inc. v. SM Line Corp.*, Dkt. 23-01, 2025 WL 2231637, at *46 (A.L.J. May 28, 2025).¹

Interrogatory Nos. 12, 13, 14, 17, 19, and 20 go to the heart of SEA’s claims. They seek:

- The specific delays for which SEA contends COSCO is responsible and the principal or material facts that support SEA’s allegation that COSCO is responsible for those delays (Nos. 12, and 13², citing AC at ¶¶ 48 and 58);
- the specific instances in which COSCO’s conduct resulted in delays (Nos. 19 and 20, citing AC ¶¶ 58-59);
- the specific instances in which COSCO “refused release of SEA Containers” because of SEA’s outstanding detention and demurrage charges (No. 17, citing AC ¶56); and
- the specific instances in which SEA requested a “reason for assessing charges” and COSCO’s responses to those requests (No. 14, citing AC ¶ 53).

SEA objected that providing “every instance” of the wrongdoings and events it alleged is burdensome, but that “[s]ubject to and without waiver” of its objections, it would provide documents “supporting” its allegations. See **Exhibit A** at 2-4. COSCO subsequently demanded that SEA answer the interrogatories and provide the Bates numbers for each interrogatory for which SEA contends that the answer may be determined from documents SEA produced. SEA

¹ *Accord, Samsung Electronics America, Inc. v. Zim Integrated Shipping Servcs. Ltd.*, Dkt. 22-30, 2025 WL 1255544, at *1 (A.L.J. Apr. 22, 2025) (requiring “cause of delay for each container”); *TZ SSE Buyer, LLC v. Yang Ming Marine Transp. Corp.*, Dkt. 24-10, 2025 WL 1083815, at *20 (A.L.J. Mar. 24, 2025) (complainant bears burden under “fact-specific, container-by-container analysis”). See also *TCW, Inc., v. Evergreen Shipping Agency (America) Corp. & Evergreen Line Joint Service Agreement*, Dkt. 1966(I), 2025 WL 516256, at *11 (F.M.C. March 12, 2025) (“The Commission finds it is necessary to make a case-by-case determination as to the reasonableness of challenged demurrage and detention practices, examining alleged extenuating circumstances....”).

² To try to obtain a resolution, COSCO modified Interrogatory No. 13 to require the “principal or material facts,” instead of all facts, that support SEA’s allegation that COSCO is responsible for each delay. See **Exhibit B**.

refused and made a new objection: it need not answer the interrogatories because it may obtain new information in discovery from COSCO, and SEA's experts may provide some information later. *See Exhibit C* at 2. Despite numerous attempts by COSCO to obtain compliance, SEA's position remains unchanged. *See Exhibit D* at 1-2; *see also Exhibit E* at 2.

SEA should be compelled to answer the interrogatories. First, it cannot be reasonably disputed that COSCO is entitled to the basis of SEA's claims for each disputed charge. In *Peloton Interactive, Inc. v. Flexport Int'l LLC*, the ALJ ordered the complainant to answer interrogatories substantially like those here: for each subject shipment "the cause of all alleged delays relating to the retrieval and return of the containers," how the respondent "caused or contributed to the underlying transportation delay...," and "caused or contributed to the delay in equipment return," the date the complainant "advised [the respondent] that each container was available to be returned," and "how many days the container was at" the complainant's facility before the complainant "advised the container could be returned;" and "[f]or each such detention charge... the factual bases of how the delay could be the result of [the respondent's] actions or inactions." (emphasis added). *Peloton Interactive, Inc. v. Flexport Int'l LLC*, Dkt. 24-19 (Order on Pending Motions and Complainant's Unilateral Status Report and Amending Scheduling Order, June 30, 2025) (Doc. 72 at 9-11).³

Furthermore, like the interrogatories in *Peloton*, COSCO's interrogatories do not impose an undue burden: SEA's discovery obligations are derived from the burden SEA bears under substantive law. SEA is a wholly owned, consolidated subsidiary of Samsung Electronics Co.

³ *See Peloton Interactive, Inc. v. Flexport Int'l LLC*, Dkt. 24-19, 2025 WL 1454516, at *4 (A.L.J. May 15, 2025) and 2025 WL 992397, at *2 (A.L.J. Mar. 26, 2025).

Ltd., the 31st largest company in the world⁴; SEA itself had 2025 U.S. sales of about \$28.3 billion (currency converted).⁵ SEA cannot demand \$20 million or more in damages but refuses to provide the information that is essential for its claims and for COSCO's defense.⁶

SEA's assertion that the interrogatories are premature is unavailing. First, because SEA made no such objection in its written response to COSCO's interrogatories, its objection is waived. 46 CFR § 502.145(b)(4) ("Any ground not stated in a timely objection is waived..."); *see* Fed. R. Civ. P. 33 (b)(4) ("....Any ground not stated in a timely objection is waived....").⁷ Indeed, under the rule imposed by federal courts in the district in which the Commission is headquartered, if SEA wanted to defer its interrogatory answers, it was required to seek a protective order permitting deferral before its answers were due. Having failed to do so, it must answer the interrogatories with the information that it has. *Huthnance v. District of Columbia*, 255 F.R.D. 297, 299 (D.D.C. 2008) ("Plaintiff should have responded to defendants' interrogatories to the best of her ability at the time they were propounded"); *see also Barnes v. District of Columbia*, 270 F.R.D. 21, 24 (D.D.C. 2010) (citing *Huthnance*, 255 F.R.D. at 298-99).

Moreover, SEA's objections fail even if timely. Federal courts have long recognized that

⁴ *See* Fortune 500, "Full List of Fortune Global 500 Companies (2026)" *available at* <https://us500.com/fortune-global-500>.

⁵ *See* "Samsung Electronics Co., Ltd. and its Subsidiaries Consolidated Financial Statements – December 21, 2025 and 2024," *available at* https://images.samsung.com/is/content/samsung/assets/global/ir/docs/2025_con_quarter04_all.pdf

⁶ *See* 46 CFR § 502.141(e)(2)(ii)(C) (discovery should be consistent with the "needs of the proceeding, the amount in controversy, the parties' resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues").

⁷ *Dollar v. Long Mfg., N.C., Inc.*, 561 F.2d 613, 617 (5th Cir. 1977) ("By failing to object, defendant waived any objections it might have had to the giving of a full answer to the interrogatory"); *Snyder Ranches, Inc. v. Oxy USA Inc.*, No. CV 23-636 MLG/GBW, 2025 WL 1697111, at *2 (D.N.M. June 16, 2025) (party ordered to answer contention interrogatories; "objections not timely made are waived"); *Donahay v. Palm Beach Tours & Transp., Inc.*, 242 F.R.D. 685, 688 (S.D. Fla. 2007) (objection that answering contention interrogatory was "premature" was waived because "not raised initially").

interrogatories which seek a party's key facts or its contentions help "clarify the issues [and] narrow the scope of the dispute," *Anaya v. CBS Broad. Inc.*, No. CIV 06-0476 JBKBM, 2007 WL 2219458, at *8 (D.N.M. May 16, 2007)⁸, enable the opposing party "'to determine what proof is necessary to effectively refute [the opposing party's] position,'" and help promote settlement. *Stout v. Long*, No. CV 14-427 WPJ, 2018 WL 1322051, at *3 (W.D. Okla. Mar. 14, 2018) (citation omitted); *see also King v. E.F. Hutton & Co.*, 117 F.R.D. 2, 6 n.5 (D.D.C. 1987). "The general view is that contention interrogatories are a perfectly permissible form of discovery, to which a response ordinarily would be required." *Starcher v. Corr. Med. Sys., Inc.*, 144 F.3d 418, 421 n.2 (6th Cir. 1998), *aff'd sub nom. Cunningham v. Hamilton Cnty., Ohio*, 527 U.S. 198 (1999). Thus, although a court may defer answers to contention interrogatories, courts readily refuse to do so. As the court stated in *Anaya*, a "plaintiff is not entitled to withhold discovery information until he has obtained to his own satisfaction all discovery from [the] [d]efendant." *Anaya*, 2007 WL 2219458, at *6. "As the party who filed the claims... *Anaya* must provide the factual basis upon which her claim relies." *Id.* at *8.⁹ The appropriate result is that the receiving party must answer contention interrogatories with the information that it has; if it gets additional information later, it may supplement its answers. *See Anaya*, 2007 WL 2219458, at *9; *Stout*, 2018 WL 1322051, at *3; *King*, 117 F.R.D. at 5–6; *Johnson*, 236 F.R.D. at

⁸ *Accord, e.g., Barnes*, 270 F.R.D. at 24 (contention interrogatories "can be most useful in narrowing and sharpening the issues"); *Johnson v. Kraft Foods N. Am., Inc.*, 236 F.R.D. 535, 544 (D. Kan. 2006) (contention interrogatories "narrow and define the issues for trial").

⁹ *Accord, e.g., Barnes*, 270 F.R.D. at 25 (ordering answer to contention interrogatory); *Johnson*, 236 F.R.D. at 544–45 (ordering answers to contention interrogatories over plaintiff's prematurity objection: "[p]laintiff must be aware of some of the specific facts... otherwise he would not have made the allegations"); *King*, 117 F.R.D. at 6 n.5 (compelling answer to interrogatory over plaintiff's objection it needed discovery and to consult with expert, noting Fed. R. Civ. P. 11); *Jobson v. United States ex rel. Dep't of Veteran Affs.*, No. CIV-17-574-SLP, 2018 WL 8299885, at *5 (W.D. Okla. Aug. 27, 2018) (ordering answers over objection that responding party had not received discovery and needed expert assistance).

544–45; *Jobson*, 2018 WL 8299885, at *5; *Huthnance*, 255 F.R.D. at 298–99¹⁰; and *see also Visual Comfort & Co. v. COSCO Shipping Lines Co., Ltd.*, Dkt. 24-01, 2024 WL 3514622, at *6 (A.L.J. July 17, 2024) (reminding Complainant who had objected that interrogatories were premature that Commission Rule 141(k) requires supplementation of interrogatory responses).

Nor does SEA’s apparent desire to await its expert reports advance its position. COSCO’s interrogatories seek facts, not expert opinion. *See, e.g.*, Interrogatory Nos. 14 and 17 (seeking the instances in which COSCO refused to release containers and sought a reason for assessing charges); Interrogatory No. 13 (seeking the principal facts on which SEA relies for its contention that COSCO was responsible for each delay at issue). Furthermore, any information SEA’s experts provide would come after the close of fact discovery—too late for COSCO to obtain discovery from SEA or third parties to rebut or defend against any information provided.¹¹ SEA should be ordered to answer the interrogatories with the information it has, and supplement as permitted or required by 46 CFR §502.141(k); *see also King*, 117 F.R.D at 5 (“It is no answer

¹⁰ SEA’s assertion that requiring SEA to answer the interrogatories would not, as SEA suggests, “unfairly ‘lock-in’ its positions.” Ex. D at 2. SEA may supplement its answers under 46 CFR § 502.141(k).

¹¹ SEA’s reliance on *In re Convergent* and *Lucero* for the proposition that contention interrogatories “at the outset of discovery are generally disfavored,” Ex. D at 2, is misplaced. *See In re Convergent Techs. Sec. Litig.*, 108 F.R.D. 328, 338-39 (N.D. Cal. 1985); *Lucero v. Valdez*, 240 F.R.D. 591, 594 (D.N.M. 2007). Even putting aside that COSCO has produced over a million pages of documents, in addition to the authorities discussed above, *see Kraft Ams. v. Oldcastle, Kraft Americas, LP v. Oldcastle Precast, Inc.*, No. LACV1203681JAKEX, 2013 WL 12125759, at *7 (C.D. Cal. Dec. 18, 2013), *aff’d sub nom.*, 641 F. App’x 718 (9th Cir. 2016) (“*Convergent* is not controlling authority” and not “persuasive”); *Livingston v. Berger*, No. CV 2019-0012, 2022 WL 613277, at *3 n.3 (D.V.I. Mar. 1, 2022) (rejecting *Convergent* and holding the burden is on the respondent to justify deferral). And in *Lucero* (which relied on *Convergent*); the court ordered that the plaintiff answer interrogatories requiring it to “[s]tate the basis for and identify each document” for the contentions in its amended complaint. *Lucero*, 240 F.R.D. at 594.

for plaintiffs to assert that they will need discovery or to consult with an expert...”).¹²

Finally, if, as SEA appears to suggest, Ex. D at 1, the answers to some or all of SEA’s interrogatories may be derived from business records that SEA has produced, SEA should be compelled to specify the Bates numbers from which each interrogatory may be answered, and if not, to provide a complete answer to each interrogatory. SEA produced over 2.1 million pages of documents in response to COSCO’s discovery requests as a whole. Its attempt to require COSCO to rummage through those documents in the hope of finding documents which may answer an interrogatory does not satisfy Rule 145. A party may not “bury the answer [to an interrogatory] in a document dump and invite [the opposing party] to hunt for it.” *TZ SSE Buyer, LLC v. COSCO Shipping Lines Co., Ltd.*, Dkt. 24-09, 2025 WL 1454511, at *10 (A.L.J. May 15, 2025) (ordering party to provide the “specific document or range of documents” that contain the information sought by interrogatory or “provide a complete response”). *See also Peloton*, 2025 WL 1454516, at *4 (complainant must “provide specific Bates number references to documents that it maintains are responsive to each of the interrogatories”); *Peloton*, Dkt. 24-19 (Doc. 72 at 11) (requiring identification of documents responsive to interrogatories by Bates number, Bates range, or other identification number).

SEA’s contention that the burden of deriving an answer from the documents is the same for COSCO as SEA is incorrect—SEA knows its documents, and the facts upon which it relies

¹² *Accord Katrinecz v. Motorola Mobility LLC*, No. A-12-CV-235 LY, 2014 WL 12160772, at *3 (W.D. Tex. Aug. 11, 2014) (requiring plaintiffs to answer contention interrogatories over objections that answers would be provided in expert reports); *Lemaster v. Collins Bus Corp.*, No. 11-CV-2128 JTM/KGG, 2012 WL 5199738, at *2 (D. Kan. Oct. 22, 2012) (requiring plaintiff to answer contention interrogatories on causation, notwithstanding objection that answers would be the subject of expert opinion); *Heuskin v. D&E Transp., LLC*, No. CV 19-957 MV/GBW, 2020 WL 1450575, at *8 (D.N.M. Mar. 25, 2020) (“while expert testimony might certainly prove beneficial,” questions were not “exclusively within the province” of an expert).

for its allegations—COSCO does not. But more importantly, it misses the point. As then District Judge, now Supreme Court Justice Jackson held, an equal burden is merely a prerequisite to a party's being able to respond to an interrogatory through business records: "even if the burden were the same... the responding party still must specify [] the records that must be reviewed, in sufficient detail to enable the interrogating party to locate and identify them as readily as the responding party could." *Haughton v. District of Columbia*, 161 F. Supp. 3d 100, 103 (D.D.C. 2014) (internal citation omitted). SEA should be compelled to provide the Bates numbers of the documents for each interrogatory for which it contends the answer may be derived from its business records.¹³

II. SEA Should be Compelled to Answer Interrogatory No. 6.

Interrogatory No. 6 asked SEA to identify the corporate executives and officers of any of its affiliates or related entities who have or had knowledge of the facts and circumstances alleged in the Amended Complaint, and to describe each such person's knowledge of those facts and circumstances. SEA asserted boilerplate objections and refused to answer the interrogatory. Ex. A at 1. COSCO offered to limit SEA's response to those officers and executives of affiliates and related entities who, to the knowledge of SEA official Mr. Michael Rapske, have knowledge and what knowledge they have. Ex. D at 5. SEA refused. *Id.* at 2-3.

SEA should be ordered to answer. Rule 141(e)(1) provides that parties may obtain discovery on "the identity and location of persons who have knowledge of discoverable matter." Furthermore, responding to the interrogatory would not be burdensome and the interrogatory does not seek speculation. SEA is only required to identify the persons at its affiliates who, to

¹³ If, notwithstanding the above, the Presiding Officer deems some deferral is appropriate, COSCO respectfully submits that in the alternative SEA should be compelled to answer Interrogatory Nos. 12-14, 17, and 19-20 no later than the expiration of document discovery, so that COSCO will have the information when it conducts depositions.

SEA's knowledge, have information about the facts and circumstances in the Amended Complaint. SEA is not required to contact its affiliates to determine whether they have knowledge or what that knowledge is.

III. SEA Should be Compelled to Answer Interrogatory No. 9.

Interrogatory No. 9 asked SEA to detail its process for the payment of demurrage and detention charges, including whether review or approval of any other entity was required, and any audit, requirements, approvals, or reviews that SEA undertook before payment. SEA objected that the Interrogatory “presupposes the process for payment of a Charge was uniform.” It then answered only that “SEA paid demurrage and detention Charges directly” and that SEA “handled” the “review and approval process,” and that it would produce documents concerning payment of charges. Ex. A at 1. SEA later said it had produced documents responsive to the interrogatory, but refused to identify them. Ex. D at 2, 5.

The information sought is probative—if, for example, SEA investigated a charge and determined it was appropriate—but now demands reparations for it, what has changed? SEA should be compelled to provide a complete answer to the interrogatory or provide the Bates numbers of the documents it produced from which a complete answer may be derived.

IV. SEA Should be Compelled to Answer Interrogatory No. 25.

Interrogatory 25 asked SEA to identify the actions it took to mitigate or limit its alleged damages. SEA objected that the interrogatory was burdensome, gave a non-answer (it “was forced to undertake and perform Cosco’s responsibilities for inland transportation”) and added it would produce documents “responding to Interrogatory No. 25.” Ex. A at 4. SEA later advised that it had produced responsive documents, but refused to identify them. Ex. D at 1, 4.

SEA must either provide a complete answer, or if the interrogatory may be derived from the business records that it produced, specify the Bates numbers of the documents from which

the answer may be derived.

V. SEA Should be Compelled to Produce the Documents Sought by RFP No. 11.

Request for Production No. 11, as modified by COSCO (*see Exhibit F*, at 10-11), requests SEA's audited financial statements for 2020-2024, and the most recent audited financial statements for 2025, or if audited financial statements do not exist, non-audited financial statements for those times. SEA has refused to provide any of the requested documents. *See* Ex. A at 5, Ex. D at 3, and **Exhibit G** at 3.

SEA seeks reparations of at least \$20 million, including \$3 million of "additional costs," and "lost revenues of at least \$2 million." AC ¶ 108 (a)-(c) (emphasis added). SEA should be compelled to produce the financial statements because SEA has put its financial performance, costs, and revenues at issue. Chief Judge Wirth's decision in *Marine Transport* ordering the production of financial statements is in accord: "While typically a complainants' financial documents may not be relevant, here, MTL asserts lost profits, loss of reputation, and other financial impacts on its business, which make these documents relevant to CMA's defense of the reparations claims. Accordingly... production of these documents is compelled." *Marine Transp. Logistics, Inc. v. CMA CGM, S.A.*, Dkt. 24-01, 2024 WL 474879, at *7 (A.L.J. Jan. 31, 2024).

CONCLUSION

COSCO's motion to compel answers to Interrogatory Nos. 6, 9, 12-14, 17, 19-20 and 25, and to produce documents responsive to Request for Production No. 11 should be granted.

Dated: February 20, 2026

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Pursuant to 46 C.F.R. § 502.150(a)(2), Counsel for COSCO certifies that counsel has conferred in good faith with counsel for SEA in an effort to obtain compliance with the discovery requests discussed above without the necessity of a motion.

CERTIFICATE OF SERVICE

I hereby certify that on this 20th day of February, 2026 I have served the foregoing document as well as the accompanying exhibits by electronic mail upon the following persons:

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By: /s/ Martha Medina